Human Rights Assessment
The Council · AI Governance Playbook (Level 5 document, §4.6.3)

An assessment of whether an AI system engages Convention rights under the Human Rights Act 1998.

Case-level screening is recorded for every AI use at any risk tier. A full assessment is mandatory for Critical AI systems and required for High systems where use may engage Convention rights under the Human Rights Act 1998. Legal Services leads the rights analysis and records independent advice with the Service Owner's operational input; the officer or Council forum holding confirmed delegation makes the decision (Playbook §4.6.3).

PROPOSED — legal review only; draft clarification, not an adopted or live Council policy change. For every AI use, regardless of AGPI tier, carry out and record case-level screening of whether the use may engage any Convention right, including rights affected indirectly by outputs or decisions; record rights considered, evidence, uncertainty and a reasoned outcome. Refer possible or uncertain engagement to Legal Services. Human Rights Act 1998 section 6 makes it unlawful for a public authority to act incompatibly with a Convention right, subject to section 6(2); it does not prescribe this template or a risk score. The Critical/High full-template rules are separate proposed internal governance thresholds, not the statutory trigger and not a substitute for section 6. Official text: https://www.legislation.gov.uk/ukpga/1998/42/section/6

1. System and Submission Details

System identity	System identity (name, owner, service area): held once in the AI Register (AIG-INV-04) under this AIR-ID; do not re-key here.
UC-ID / rights-impact scope	Purpose/affected people; AGPI priority ___; risk tier ___.
AIR-ID	AIR-XXXX
Risk tier	Low / Medium / High / Critical
Assessment type	Screening only / Full assessment (screening at every tier; full assessment for Critical, and for High where Convention rights may be engaged)
Legal Services lead	
Date started	

Use-specific rights analysis — identify UC-ID, purpose, decision/action, affected people and context. Assess rights impacts, necessity, proportionality and safeguards for this use; materially different contexts need separately traceable conclusions.

2. Operational Context

How is the AI used, what decisions does it affect, and who is subject to those decisions?

3. Convention and Protocol Rights Screening

Legal Services must identify each right engaged and record the applicable legal character and test: absolute, limited, qualified, procedural or ancillary. For engaged rights, record the legal basis, legitimate aim where relevant, necessity, proportionality, safeguards and remedy. Article 6 applies only where civil rights and obligations or criminal charges are determined; it is not a general administrative-fairness label.

Convention right	Engaged?	How engaged; legal character/test; legal basis, justification, safeguards and remedy
Right to life (Art 2)	Yes / No / Uncertain	
Prohibition of torture or inhuman or degrading treatment (Art 3)	Yes / No / Uncertain	
Prohibition of slavery and forced labour (Art 4)	Yes / No / Uncertain	
Right to liberty and security (Art 5)	Yes / No / Uncertain	
Fair hearing in determination of civil rights/obligations or criminal charges (Art 6)	Yes / No / Uncertain	
No punishment without law (Art 7)	Yes / No / Uncertain	
Private and family life, home and correspondence (Art 8)	Yes / No / Uncertain	
Freedom of thought, conscience and religion (Art 9)	Yes / No / Uncertain	
Freedom of expression (Art 10)	Yes / No / Uncertain	
Freedom of assembly and association (Art 11)	Yes / No / Uncertain	
Right to marry (Art 12)	Yes / No / Uncertain	
Prohibition of discrimination in enjoyment of Convention rights (Art 14)	Yes / No / Uncertain	
Restrictions on political activity of aliens (Art 16), prohibition of abuse of rights (Art 17) and limitation on use of restrictions on rights (Art 18), where relevant	Yes / No / Uncertain	
Protection of property (Protocol 1, Art 1)	Yes / No / Uncertain	
Right to education (Protocol 1, Art 2)	Yes / No / Uncertain	
Right to free elections (Protocol 1, Art 3)	Yes / No / Uncertain	
Abolition of the death penalty	Yes / No /	

Convention right	Engaged?	How engaged; legal character/test; legal basis, justification, safeguards and remedy
(Protocol 13, Art 1) or other applicable Protocol right	Uncertain	

4. Mitigation and Safeguards

Safeguards in place to ensure any interference with rights is lawful, necessary and proportionate

5. Outcome and Legal Advice

Overall assessment	Not engaged / Engaged and justified / Engaged — safeguards required / Unlawful or unjustified
Legal recommendation	Proceed / Proceed with safeguards / Do not proceed / Further legal analysis required

Legal Services records its independent advice on the rights engaged, the applicable legal tests and any required safeguards. The officer or Council forum holding confirmed delegation records the decision and conditions in the Governance Decision Record (AIG-DEC-03).

Legal Services lead name	
Legal Services advice confirmation / signature	
Date	
Service Owner name	
Service Owner signature	
Date	
Governance Decision Record reference	

Document control
Administrative control record. This artefact remains a working draft until formally approved.

Field	Controlled value
Document ID	AIG-ASS-07
Version	1.5 draft
Status	Draft for Council review
Document owner	Legal Services
Approving body	Pending — competent Council authority under confirmed Constitution / Scheme of Delegation; AI Assurance Board provides assurance and is not presumed to hold approval authority.

Field	Controlled value
Approval date	Not yet approved
Effective date	Not yet effective
Next review date	To be set on approval: 12 months after the effective date, or sooner following material change
Classification	OFFICIAL

Change history

Version	Date	Change summary	Owner
1.0 draft	6 August 2026	Document-control baseline established following full-suite quality assurance; no substantive content change.	Legal Services
1.1 draft	29 September 2026	QA remediation — applied findings QA-061, QA-062, QA-163, QA-168, QA-185, QA-200, QA-204, QA-221 (see QA change log).	Legal Services
1.2 draft	30 September 2026	v3.9.1: standards cross-reference note updated to the 54-entry requirement inventory (AIG-AIMS-05 REQ-054, Civil Contingencies Act 2004, added).	Legal Services
1.3 draft	1 October 2026	v3.9.3: standards cross-reference note cites the 55-entry requirement inventory (AIG-AIMS-05 REQ-055, NIST AI 600-1 Generative AI Profile, added).	Legal Services
1.4 draft	2 October 2026	v3.9.5: standards cross-reference note cites the 56-entry requirement inventory (AIG-AIMS-05 REQ-056, SI 2026/425 ICO statutory code of practice on AI and automated decision-making, added). Proposed — for Council confirmation.	Legal Services
1.5 draft	12 October 2026	v3.9.10: standards cross-reference note cites the 58-entry requirement inventory (AIG-AIMS-05 REQ-057 DAMA-DMBOK and REQ-058 ISO/IEC 5259, added as voluntary data governance references). Proposed — for Council confirmation.	Legal Services

NOT APPROVED — PROPOSED INTEGRATION ANNEX

Integration annex — Human Rights assessment and evidence joins

DRAFT FOR COUNCIL REVIEW • 25 September 2026 • Not approved for operational use

Legal assessment remains native

This HRA remains the native record for Legal Services' rights screening, applicable legal character/tests, advice, safeguards and remedy analysis, with the Service Owner's operational input. The annex makes no finding that a Convention right is or is not engaged, that interference is justified, or that any legal obligation applies. Record legal reasoning and uncertainty in the HRA itself.

Evidence and authority

After AIR-ID registration in AIG-INV-04, cite evidence using the proposed AIG-INV-04 Evidence Index Evidence ID, exact source/version, observed or verification date and location. An AIG-DEC-04 citation must identify an actual dated Gate Event or Condition only. Legal advice remains in its source; the authorised governance decision and conditions belong in AIG-DEC-03 or authoritative forum minutes. An AIG-DEC-04 reference may point to the dated record but cannot make the decision.

Changes, review and contestability

Reassess the native HRA when purpose, affected decisions, data, supplier, model/version, or material system capability changes. Update current state in AIG-INV-04, link monitoring and review in AIG-OPS-02, and use AIG-DEC-04 only for the actual dated event/condition. Link the appropriate AIG-OPS-04 contestability/redress route where decisions affect individuals; the link does not imply that a right is triggered or that a remedy has occurred.

Fundamental-rights coverage: for how this Human Rights Assessment contributes to EU AI Act Article 27 fundamental-rights impact assessment coverage, see the Fundamental Rights Coverage Crosswalk (AIG-ASS-12). The crosswalk is a design mapping, not case evidence.

Agentic scope and draft status

For consequential agent activity, identify exact AIG-AGT-04 ASBOM permissions/version; AIG-AGT-05 is a derived graph, and AIG-AGT-06 holds action-level decision records. None substitutes for Legal Services' assessment or grants authority. No rights conclusion, assessment outcome, approval, or public publication is established by this proposed annex.

Standards and legal applicability — proposed QA cross-reference

PROPOSED QA INDEX — NOT APPROVED LEGAL ADVICE OR EVIDENCE OF COMPLIANCE. The listed instruments may be relevant to this artefact, but applicability depends on the case, service and Council delegation. Legislation, official guidance, Council policy and voluntary standards are different authority classes. The full 58-entry requirement inventory, authoritative URLs, validation owners and current versions are in AIG-AIMS-05; source checks are in AIG-AIMS-13. Do not treat a template, plan or cross-reference as completed assessment, adopted policy, ISO conformity or legal sign-off.

Requirement / instrument	Why check it here	Source
REQ-006 — Human Rights Act 1998	Public-authority compatibility under s.6; assess Convention rights engaged by the case.	https://www.legislation.gov.uk/ukpga/1998/42/contents
REQ-007 — Administrative law, statutory powers, procedural fairness and reasoned decision-making	Screen the public-law requirement against this artefact's actual use and record evidence/version.	Common law and statute; Legal Services to confirm the authoritative source (for example, Government Legal Department, 'The Judge Over Your Shoulder')